

HOUSE No. 742

The Commonwealth of Massachusetts

PRESENTED BY:

Marcus S. Vaughn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to provide an option to opt out of free school lunch.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/3/2025</i>

HOUSE No. 742

By Representative Vaughn of Wrentham, a petition (accompanied by bill, House, No. 742) of Marcus S. Vaughn for legislation to provide school districts with an option to opt out of the free school lunch. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE DOCKET, NO. 4579 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to provide an option to opt out of free school lunch.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 69 of the General Laws is hereby amended by inserting after section 1C1/2 the
2 following section:-

3 Section 1C ¼. (a) Notwithstanding any general or special law to the contrary, a school
4 district may opt out of any state non-income-based free lunch program, including a program
5 required pursuant to section 1C. A school district that chooses not to participate in a non-income-
6 based free lunch program may obtain and utilize for other purposes the funds that would be
7 directed to the school district from the commonwealth under the program.

8 (b) If a school district does not choose to opt out of a state non-income-based free lunch
9 program pursuant to subsection (a), a student's parent or guardian may choose to opt out of the

10 program. Notwithstanding any law to the contrary, if the student's parent or guardian chooses not
11 to have the student participate in the free lunch program, the student may purchase school lunch
12 at a rate set by the school district. The school district shall not count the non-participating student
13 for the purposes of securing funds under the free lunch program. Notwithstanding any law to the
14 contrary, the school district may obtain and utilize for other purposes the funds that would be
15 directed to the school district from the commonwealth if the non-participating student were
16 counted for purposes of the program, as determined by the board.